

26STCP01237 26STCP01237

County: los-angeles

Division: Civil Law and Motion

Department: 26

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Case Number: 26STCP01237 Hearing Date: July 30, 2026 Dept: 26

TENTATIVE RULING:

Petitioner John

Panek's Petition to Vacate Contractual Arbitration Award is denied.

Petition of

Respondent Kaise Corporation to Confirm Arbitration Award is advanced from 09/14/2026 and granted. The arbitration award is confirmed in favor of Respondent Kaise Corporation in the amount of \$14,589.00 and with the directive that "Respondent shall remove Mechanic's Lien No. 20250291047 filed against Complainant's property within fourteen (14) calendar days after receipt of Award payment from Complainant."

Respondent is to

file and serve a proposed judgment in accordance with this order within 20 days of this ruling.

Analysis:

On March 26, 2026, Petitioner John Panek ("Petitioner") filed the instant Petition to Vacate Contractual Arbitration Award against Respondent Ramirez / Kaise Corporation ("Respondent"). On May 11, 2026, Petitioner filed an Amended Petition to Vacate Contractual Arbitration Award.

Respondent filed a Petition to Confirm Arbitration Award on June 10, 2026, to which Petitioner filed a combined answer and opposition on July 1, 2026. The Petition to Confirm Arbitration Award is set for hearing on September 14, 2026. Respondent also filed an opposition to the Amended Petition to Vacate

Arbitration Award on July 9, 2026.

Discussion

The Petition to Vacate is not a model of clarity. It purports to vacate an arbitration award issued on February 18, 2026, but which is not attached to the Petition. (See Pet., Exh. G.) The request to vacate is brought on the basis that the award was obtained by corruption, fraud, or other unfair means, the arbitrator was corrupt, misconduct of a neutral arbitrator substantially prejudiced Petitioner's rights, the arbitrator exceeded his or her authority, and the award cannot be fairly corrected, the arbitrator unfairly refused to postpone the hearing or to hear evidence useful to settle the dispute, and the arbitrator should have disqualified himself or herself after Petitioner made a demand to do so. (Pet., ¶10c.)

Filing Requirements of a Petition to Confirm, Correct, or Vacate Arbitration Award (CCP § 1285.4)

“A
petition under this chapter shall:

(a)
Set forth the substance of or have attached a copy of
the agreement to arbitrate unless the petitioner denies the existence of such
an agreement.

(b)
Set forth the names of the arbitrators.

(c) Set forth or have attached a copy
of the award and the written opinion of the arbitrators, if any.”

(Code Civ.
Proc., § 1285.4, subds. (a)-(c).)

The Petition
does not meet these requirements because it neither names the arbitrator nor
attaches a copy of the arbitration award.

Service of Petition and Notice of Hearing (CCP § 1290.4)

Code of Civil Procedure

section 1290.4 states in pertinent part:

“(a) A copy of the petition and a written notice of the time and place of the hearing thereof and any other papers upon which the petition is based shall be served in the manner provided in the arbitration agreement for the service of such petition and notice.

(b) If the arbitration agreement does not provide the manner in which such service shall be made and the person upon whom service is to be made has not previously appeared in the proceeding and has not previously been served in accordance with this subdivision: ¶ (1) Service within this State shall be made in the manner provided by law for the service of summons in an action.”

(Code Civ. Proc., § 1290.4, subds. (a)-(b).) No proof of service of the Petition to Vacate, Amended Petition to Vacate, or Notice of Hearing is on file with the Court. Respondent raises the lack of proper service in its opposition to the Petition to Vacate, and in doing so, objects to the Court’s exercise of jurisdiction without proper service.

Respondent received the original Petition by certified mail, but did not sign or return the acknowledgement of receipt. (Opp., Franklin Jr. Decl., ¶11 and Exh. 3.) Service by mail is only complete “on the date a written acknowledgment of receipt of summons is executed, if such acknowledgment thereafter is returned to the sender.” (Code Civ. Proc., § 415.30, subd. (c).) The requirements for service by mail, therefore, are not met. Petitioner also emailed Respondent the original Petition, which is not an authorized method to serve a summons under Code of Civil Procedure section 415.10, et seq. (Opp., Franklin Jr. Decl., ¶12 and Exh. 5.) With respect to the Amended Petition, no record of service exists and Respondent denies that service was even attempted. (Id. at ¶13.)

The service requirements under Code of Civil Procedure section 1290.4, therefore, are not met and the Court lacks jurisdiction over Respondent. (See *Abers v. Rohrs* (2013) 217 Cal.App.4th 1199, 1206.)

Deadline for Service of Petition (CCP § 1288)

Under Code of Civil Procedure section 1288,

“[a] petition to vacate an award or to correct an award shall be served and filed not later than 100 days after the date of the service of a signed copy of the award on the petitioner. (Code Civ. Proc., § 1288.) The arbitration award was served on both parties on February 18, 2026. (Opp., Franklin Jr. Decl., Exh. 2, p. 3.) The 100-day deadline, therefore, expired on May 29, 2026. As Petitioner has not demonstrated service of the Petition by the deadline, the requirements of Code of Civil Procedure section 1288 are also not satisfied.

These

jurisdictional defects require the Court to deny the Petition to Vacate Contractual Arbitration Award.

Grounds to Vacate the Arbitration Award

Even if the Court were to consider the

substance of the Petition despite the service defects discussed above, the Petition does not refer to any specific legal authority to vacate the award other than the broad reference to Code of Civil Procedure section 1285, et seq. in the standard language of the Judicial Council form. The bases to vacate the award raised in the Petition correspond to those grounds provided for in Code of Civil Procedure section 1286.2, subdivision (a)(1) to (a)(6). The Petition, however, does not provide coherent evidence to support these claims. Petitioner provides no supporting declaration and attaches an assortment of exhibits without clearly explaining their relation to the grounds raised to vacate the award. (See Pet., pp. 5, 8-19.) Therefore, Petitioner has also not demonstrated a substantive basis to vacate the arbitration award.

Conclusion

Petitioner John

Panek's Petition to Vacate Contractual Arbitration Award is denied.

Petition of

Respondent Kaise Corporation to Confirm Arbitration Award is advanced from 09/14/2026 and granted. The arbitration award is confirmed in favor of Respondent Kaise Corporation in the amount of \$14,589.00 and with the directive

that "Respondent shall remove Mechanic's Lien No. 20250291047 filed against Complainant's property within fourteen (14) calendar days after receipt of Award payment from Complainant."

Respondent Kaise

Corporation is to file and serve a proposed judgment in accordance with this order within 20 days of this ruling.

Respondent Kaise Corporation to
give notice.